

Public

Ref: FOI/26/121

National Energy System Operator
Faraday House
Gallows Hill
Warwick
CV34 6DA

InformationRights@neso.energy
www.neso.energy

11 July 2026

Dear requester

Request for Information

Thank you for your request for information which was received by NESO on 10 July 2026. Your request has been considered under the Environmental Information Regulations 2004 (EIR). This is because information about connection agreements relates to a measure that could affect the environment and therefore meets the definition of 'environmental information' provided at Regulation 2(1)(c) of the EIR.

Request

You asked us [our numbering added]:

.... please could you send me the England and Wales data on Mod apps related to those asking for conversion from BESS to data centre demand....

- 1. Please could you tell us how many modification applications NESO has received for modifying connections initially given for BESS, into a colocation BESS plus Data Centre Connection, or to a Data Centre.*
- 2. Please give the number of connections and the capacity in MW separately for England and Wales and the month/year that these came in.*
- 3. How many of these applications have been granted and for what MW capacity?*
- 4. Please also tell me the Project name as it appears on the TEC register for each (or another name for the project where that is more appropriate).*

We contacted you on 16 July to ask for confirmation that your email included the full text of your request as there appeared to be some missing text. We have not received a reply to that email, and we are therefore responding to your request as copied above.

Our response to your previous information request, and our subsequent internal review of that response, are published on our EIR/FOIA Disclosure Log here:

- [FOI/25/294](#)
- [FOI/25/294 \(Internal Review\)](#)

Our response

We can confirm that we hold information in scope of this information request.

Response to questions 2 and 3 of your request (as numbered in the 'Request' section of this letter).

We are providing in the table below information in scope of these questions. The information provided was compiled in July 2026 as part of work undertaken by staff within NESO's Connections team. The main aim of this piece of work was not to identify projects for which an application has been received for the modification of an agreement from BESS to either colocation BESS plus Data Centre Connection, or to a Data Centre, but records in scope of part of your request were created alongside the main piece of work. These records included information on modification applications meeting that criteria that have been contracted/granted. As this work was carried out for NESO business purposes, and not for the purposes of responding to an information request, the EIR/FOIA timescales and considerations of the costs and burdens on the organisation, did not apply to the collation of this information.

Regulation 5(4) of the EIR requires that information a public authority provides "*... shall be up to date, accurate and comparable, so far as the authority believes.*" Further to this, the ICO advises that information is still held by a public authority even where the complete set of requested data is not held, and where the information held contains inaccuracies. We do believe this information as provided to be accurate; however, it is possible that there are some gaps in the data. As above, recording this information was not the main purpose of the 'business-as-usual' work being carried out, and we have not carried out any further quality assurance.

FOI Response (England and Wales) - modification applications contracted/granted	
No. of BESS Modified to include Data Centres	21
Total MW for Final Demand (Data Centre)	57MW x 2

	120MW x 1 150 MW x1 200MW x 2 300MW x 3 400MW x 8 500MW x 4 Total: 6884MW
Dates for Mod Apps Received	May 2024 x 2 July 2024 x 1 August 2024 x 1 November 2024 x 5 December 2024 x 2 January 2025 x 10

Response to question 4 of your request

You have asked us to provide the name of each project as it appears on the TEC Register. We can confirm that not all the projects in scope of your request have an entry on the TEC Register. This is explained further in the advice and assistance section below.

We consider all requests for information on a case-by-case basis but generally NESO does not disclose information about specific projects, unless the requested information is already in the public domain, or we have been able to consult with relevant parties and determined that disclosure is appropriate in the circumstances. You will see from the responses published on our [Disclosure Log](#) that our decision to refuse your request for information at individual project level is consistent with our decisions on similar requests for other projects.

We are withholding the names of the projects for which we have provided aggregated information in the table above under Regulation 12(5)(e) of the EIR, which states that a public authority may refuse to disclose information to the extent that its disclosure would adversely affect the confidentiality of commercial or industrial information where such confidentiality is provided by law to protect a legitimate economic interest. Information is covered by Regulation 12(5)(e) if:

- The information is commercial or industrial in nature;
- Confidentiality is provided by law;
- The confidentiality is protecting a legitimate economic interest;
- The confidentiality would be adversely affected by disclosure.

Information relating to specific developers and projects is commercial in nature and our use of this exception is primarily in respect of the potential consequence to the developer's commercial interests.

Commercial companies develop energy projects and are independent of NESO and the other organisations that make up Great Britain's energy system. Development projects are competitive processes, both for the rights to connect to the transmission network, and also for funding from investors and any available government funding where applicable.

Given the competitive arena in which renewable energy projects are developed and implemented, a developer would not expect their commercial information to be published.

Connection offers are made substantially in the form and under the terms of the Connection and Use of System Code (CUSC). The CUSC has exhibits containing proformas of the documents which set out the main content of the connection agreements with a developer, and you can find the CUSC and the proformas on our website: [Connection and Use of System Code \(CUSC\) | National Energy System Operator](#). NESO is bound by the confidentiality obligations under the CUSC and cannot share the specific terms put in place with a developer.

NESO also falls within the scope of the Utilities Act 2000 and Section 105 of that Act makes it a criminal offence to disclose information: a) obtained under the Utilities Act 2000 and any other key energy legislation such as the Gas Act 1986 and the Electricity Act 1989, subject to specific exceptions; and b) where the information relates to the affairs of any individual or any particular business during the lifetime of the individual or so long as the business continues to be carried on.

You may find it helpful to know that this kind of confidentiality obligation is not limited to the energy sector. There are equivalent provisions in legislation governing other sectors (e.g. the Water Act 1989, the Telecommunications Act 1984, the Airports Act 1986, and the Broadcasting Act 1990). In our opinion, the information in question which is held by our Connections Team is subject to the restrictions at Section 105 of the Utilities Act and does not fall within any of the limited exceptions to that duty of confidentiality. Beyond this, there is also a common law duty of confidentiality based on the expectations of the developers.

There is a general public interest in public organisations being accountable and transparent and NESO ensures that it upholds as far as possible the presumption of disclosure under EIR. The disclosure of information in many circumstances may increase public understanding of decision making, facilitate effective public participation and, in this case, increase the public's knowledge of how the connections process is managed, particularly in relation to demand connections. There is a strong public interest in the development of transmission connected demand, particularly data centres, especially where the construction and development of such projects may have an impact on local areas.

There is a public interest in ensuring no specific developer is materially disadvantaged through the disclosure of confidential commercial information, which is not released in respect of other projects. This ensures that there is a level playing field across all projects. To disclose information on the individual projects included in this response, would be potentially disclosing information to the public that is not available in relation to other projects that have submitted a modification application to modify their connection from BESS to either a data centre or a co-located BESS/data centre.

NESO has a public duty under our licence to facilitate competition within the energy market and there is a recognised public interest in allowing competition in the energy industry. Increased renewable generation is crucial to the Government achieving its net zero and clean energy targets and anything that unjustifiably inhibits the competitive development of that renewable generation runs counter to these goals.

NESO is the designated independent system operator and planner under the Energy Act 2023 and must remain independent, fair, and consumer focused. Disclosure could erode trust within the sector, hampering NESO's role and our ability to drive forward reforms and initiatives that would bring benefits to consumers and to the environment.

Having weighed up the public interest arguments, our opinion is that the public interest lies with maintaining the exception, and we are refusing to disclose information in scope of this request at individual project level.

Response to question 1 of your request

In the course of the 'business as usual' work that was being carried out, no central record was created of modification applications NESO has *received* for modifying connections initially given for BESS, into a colocation BESS plus Data Centre Connection, or to a Data Centre. There is therefore no single record of the number of such modification applications submitted.

We have considered whether we would be able to collate this information without an undue burden on the organisation. The EIR/FOIA timescales and considerations of the costs and burdens on the organisation would apply to responding to that part of your request and we have determined that Regulation 12(4)(b) is engaged for this part of your request.

To identify modification applications in scope of your request that have been submitted but rejected, we would be required to manually review the records of all BESS projects in England and Wales (excluding the 21 projects in England and Wales that have been identified as having had a modification application from BESS to a data centre/co-located data centre granted/contracted). This is because we would need to initially confirm which projects have submitted a modification application and then review each modification application to identify the requested change to contract. This is not the same dataset that was reviewed in the business-as-usual work referred to in response to question 2 and 3 of this request.

There are 622 BESS projects in England and Wales, and some projects may have submitted more than one modification application. We have previously explained that, unlike the Freedom of Information Act, where Section 12 allows for refusal of a request where compliance would exceed 18 hours of staff time, the EIR have no appropriate cost limit. It is clear however that manually reviewing the records of 622 projects would represent a significant, unsustainable, burden on the organisation in terms of both time, costs and the disruption to the delivery of other services and critical work. We have considered whether extending the EIR deadline, rather than refusing this part of your request, would be appropriate but have determined that this is not feasible given the scope of the work required to answer this question.

The exception provided at Regulation 12(4)(b) of the EIR is subject to the public interest test.

There is a general public interest in public organisations being accountable and transparent and NESO ensures that it upholds as far as possible the presumption of disclosure under EIR. The disclosure of information in many circumstances may increase public understanding of decision making, facilitate effective public participation and, in this case, increase the public's knowledge of how the electricity network and the connections process is managed.

Public authorities must however be protected from any disproportionate burden caused by requests for information. It is not in the public interest for NESO's resources to be diverted away from its key functions nor from current work on demand connections that will increase transparency and understanding of the demand queue and inform potential regulatory change. We also consider that there is a greater public interest in information relating to

contracted/granted modification apps in scope of your request, and more limited public interest in the number of modification applications rejected.

Despite the presumption in favour of disclosure, the excessive burden of responding to your request means that we conclude that the public interest lies in maintaining the exception in Regulation 12(4)(b) of the EIR. This is because we believe that to respond to this part of your request would represent a disproportionate burden on the organisation and its staff and we do not believe that the value or purpose of the request would justify the burden. The ICO guidance is clear that the burden to be considered under this exception includes the diversion of resource away from other priorities and activities. NESO is funded by consumers, and it is in the public interest to use resources to deliver licensed activities and services in cost-effective way.

This concludes our response to your request.

Advice and assistance

In your email of 10 July, further to your information request, you stated that:

'I believe that the TEC register should help you in finding the Mod apps that are conversions from Battery storage to Data centre demand as they will all have Demand;Energy Storage System' listed with them ...

The TEC Register is a list of projects that hold contracts for Transmission Entry Capacity (TEC) with NESO. These include existing and future connection projects and projects that can be directly connected to the National Electricity Transmission System (NETS) or make use of it. NESO is not required under the Connection and Use of System Code (CUSC) to maintain or publish a register for demand connections, unlike our obligation to do so for generation connections (the TEC Register). We have previously had enquiries about providing a demand register and, as part of NESO's Strategic Demand Initiative (in development, in collaboration with Ofgem, the Department of Energy Security and Net Zero and networks), a demand register is under consideration.

As advised above, not all the projects in scope of this request have an entry on the TEC Register and some of the projects have a 'Plant Type' recorded on the TEC Register that differs from 'Demand; Energy Storage System'. Identifying the projects for which we have provided the aggregated information was a manual process that required checking multiple documents for each relevant project. The projects in scope of questions 2 and 3 of your request for which we have provided recorded information held at the time of your request, were not identified by filtering the TEC Register.

Next steps

If you are dissatisfied with our handling of your FOI/EIR request, you can ask us to review our response. If you want us to carry out a review, please let us know within 40 working days and quote the reference number at the top of this letter. You can find our procedure here: [Freedom of Information and Environmental Information Regulations | National Energy System Operator](#). The ICO's website also provides guidance on the internal review process: [What to do if you are dissatisfied with the response | ICO](#).

If you are still dissatisfied after our internal review, you can complain to the Information Commissioner's Office (ICO). You should make complaints to the ICO within six weeks of receiving the outcome of an internal review. The easiest way to lodge a complaint is through their website: www.ico.org.uk/foicomplaints. Alternatively, they can be contacted at: Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

Thank you for your interest in the work of the National Energy System Operator (NESO).

Regards,

The Information Rights Team, National Energy System Operator (NESO)